

25AVCV00347 25AVCV00347

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Case Number: 25AVCV00347 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MICHELE M. CARUSO,

Plaintiff,

v.

CAMACHO AUTO SALES, INC.,

Defendant.

Case Number 25AVCV00347

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 18, 2026

Dept. A-14

Judge William H. Forman

I. Background

Defendant Camacho Auto Sales, Inc. (Defendant) moves to compel the depositions of retained experts Alen Nourian, M.D. (Nourian), Jonathan Oheb, M.D. (Oheb), and Philip Rosescu (Rosescu), or in the alternative, to exclude their opinions at the time of trial, and requests monetary sanctions.

On March 17, 2025, Plaintiff Michelle M. Caruso (Plaintiff) filed a complaint against defendant asserting a cause of action for Premises Liability. Plaintiff alleges that on March 24, 2023, Plaintiff suffered injuries after tripping and falling over a ramp that was left out on the premises known as Camacho Auto Sales, Inc. and located at 412 Auto Vista Dr., Palmdale, CA 93551 (the Property). (Compl., Premises Liability Attachment, p. 4, ¶ Prem.L-1.)

On May 20, 2025, Defendant filed an answer.

On April 24, 2026, Defendant filed a motion to compel an independent medical examination of Plaintiff.

On April 28, 2026, Defendant filed the present motion.

On May 1, 2026, the Court granted Defendant's ex parte application to continue trial and all related pre-trial dates. Trial was continued from May 26, 2026 to September 11, 2026, and the Court ordered that discovery is not reopened, but that pending discovery may be completed if it was timely noticed.

On June 2, 2026, the Court granted Defendant's motion to compel an independent medical examination of Plaintiff.

On August 5, 2026, Plaintiff filed an opposition to the present motion.

On August 11, 2026, Defendant filed a reply.

II. Preliminary Procedural Issues

Timeliness of Defendant's Motion – In granting Defendant's ex parte application to continue trial on May 1, 2026, the Court expressly stated that discovery was not reopened, but that any properly noticed pending discovery issues could still be resolved and completed if timely noticed. Pursuant to California Code of Civil Procedure section 2024.020, discovery shall be completed on or before the 30th day before trial, and all motions concerning discovery shall be heard on or before the 15th day before the date initially set for trial.

Trial in this case was originally set for May 26, 2026. Therefore, discovery cutoff was on Monday, April 27, 2026. This motion was filed on April 28th and noticed for hearing on August 18, 2026. "[A] party who notices a discovery motion to be heard after the discovery motion cutoff date does not have a right to have the motion heard. But the fact that a party does not have a right to have a discovery motion heard after the discovery motion cutoff date does not mean the court has no power to hear it, or that the court errs in hearing it." (Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568, 1586.) Therefore, the present motion was untimely filed pursuant to the original trial date.

However, in light of the Court's May 1, 2026 ruling made after the filing of this motion, that Defendant's motion was only one day past the deadline, and in the absence of any objection from or cognizable prejudice to Plaintiff, the Court will consider the motion on the merits.

Meet and Confer Requirement – A motion to compel deposition shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450 subd. (b)(2).)

Here, Defendant has provided the Declaration of Defense counsel Michael Parme, who states that Defendant made repeated good faith efforts to meet and confer, coordinate the depositions, and obtain Plaintiff’s experts’ availability, including an April 16, 2026 meet and confer letter, to which Plaintiff failed to meaningfully respond, ongoing communications regarding the scheduling of the depositions, and nonappearances to noticed deposition dates for which no alternative dates were proposed. (Parme Decl., ¶¶ 7-10, 14., Ex. I, J, L.)

In opposition, Plaintiff asserts that Defendant did not engage in meaningful or good faith meet and confer efforts, as the correspondence was from Parme, prior to the filing and service of a valid substitution of attorney, and asserts that Defendant improperly disregards the fact that Plaintiff provided alternative deposition availability. (Opp., p. 4:1-16.)

On reply, Defendant argues that it only filed the present motion after Plaintiff failed to produce her designated experts, failed to provide alternative dates, and allowed Rosescu’s deposition to proceed to a non-appearance. (Reply, p. 8:12-16.)

The Court finds the meet and confer requirement has been satisfied. Defendant has stated in Parme’s Declaration that Defense counsel attempted repeatedly to engage in meet and confer discussions, that Plaintiff refused during the transition of Defendant’s counsel, that Plaintiff failed to produce her experts for deposition and failed to provide alternative dates, and that the issue has been unable to be informally resolved despite months of efforts. This satisfies the meet and confer requirement. The Court will address the arguments of bad faith in the sections below as to the Parties’ respective sanctions requests.

III. Legal Standard

Standard for Motions to Compel Depositions – Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code of Civ. Proc., § 2025.010.) On receipt of an expert witness list from a party, any other party may take the deposition of any person on the list pursuant to the procedures set forth in Sections 2025.010, 2026.010, and 2028.010, et seq. (Code Civ. Proc., § 2034.410.) A properly served deposition notice accompanied by the tender of the expert witness fee is effective to require the party employing or retaining the expert to produce the expert for the deposition. (Code Civ. Proc., § 2034.460, subd. (a).) An expert whose deposition is noticed must produce any materials or category of materials called for by the deposition notice no later than three days before the deposition. (Code Civ. Proc., § 2034.415.)

“If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent’s attendance and testimony, and the production . . . of any document . . . described in the deposition notice.” (Code of Civ. Proc., § 2025.450, subd. (a).) The motion must set forth facts showing both good cause justifying the demand for any documents and a meet and confer declaration. (Code of Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).) Good cause is construed liberally and has been found where documents are necessary for trial preparation. (See Associated Brewers Dist. Co. v. Superior Court (1967) 65 Cal.2d 583, 587.)

IV. Discussion

Application – Defendant moves to compel the depositions of three of Plaintiff's retained experts, Rosescu, Nourian, and Oheb pursuant to Code of Civil Procedure section 2025.450 et seq., production of expert documents without objections for all three experts pursuant to Section 2034.415, and monetary sanctions in the amount of \$3,310 pursuant to California Code of Civil Procedure sections 2023.030 and 2025.450. (Motion, p. 2:1-14.) The motion is made on the grounds that (1) Defendant properly noticed the depositions, (2) Plaintiff failed to produce the job files and documents for any of the experts, (3) Plaintiff failed to produce Rosescu for deposition on April 20, 2026 resulting in non-appearance, (4) Plaintiff failed to confirm the attendance of Nourian and Oheb and failed to provide alternative dates, and (5) Plaintiff and her counsel failed to respond meaningfully to meet and confer efforts. (Motion, p. 2:15-3:8.)

The relevant factual timeline as set forth by Defendant is as follows:

On March 13, 2026, Defendant served a demand for exchange of expert witness information, in response to which Plaintiff designated Nourian, Oheb, and Rosescu as retained experts. (Motion, p. 4:23-26; Parme Decl., ¶¶ 2-3, Ex. A, B.) On April 7, 2026, Defendant served notices of deposition for all three experts. (Motion, p. 4: 27-28) On April 10, 2026, Plaintiff served objections to all three notices, asserting that counsel and deponents were unavailable on the noticed dates, did not propose alternative dates, and stated a willingness to discuss alternative dates with counsel. (Motion, p. 4:28-5:2; Parme Decl., ¶ 5, Ex. E, F, G.)

During this time, Defense counsel Parme, who handled Defendant's case as counsel from inception, was transitioning from his prior law firm Haight Brown & Bonesteel LLP (Haight) to Kahana Feld, LLP, and Plaintiff was notified of this transition on April 14, 2026 and informed that counsel would file a substitution of attorney would be filed upon receipt of Defendant's signature. (Motion, p. 5:5-8; Parme Decl., ¶ 6, Ex. H; See also Defendant's Answer to the Complaint.) However, because a substitution of attorney had not been filed and Parme's prior firm Haight was still listed as counsel of record, Plaintiff refused to proceed with the depositions and stated she would not participate in discovery with Kahana Feld until a substitution of attorney was filed. (Motion, p. 5:8-11; Parme Decl., ¶ 6, Ex. H.)

On April 16, 2026, Parme sent a formal meet and confer letter to Plaintiff's counsel requesting confirmation of Plaintiff's experts appearances at their respective depositions, requested alternative dates if necessary, and advised that a motion to compel would be filed if Plaintiff did not comply with discovery obligations. (Motion, p. 5:12-17; Parme Decl., ¶ 8, Ex. I.) Plaintiff did not provide a substantive response to the letter, instead stating that Plaintiff would not produce her experts and would not provide further documentation until a substitution of attorney or formal notice of association was filed. (Motion, p. 5:17-25; Parme Decl., ¶¶ 9-10, Ex. J.) On April 20, 2026, Rosescu's deposition proceeded as noticed, but neither Rosescu nor Plaintiff's counsel appeared, and a certificate of non-appearance was taken, and the April 21, 2026 depositions of Nourian and Oheb did not move forward, as Plaintiff refused to confirm attendance or provide alternative dates. (Motion, p. 5:26-6:2; Parme Decl., ¶ 12.)

Plaintiff's counsel was served with the formal substitution of attorney on April 21, 2026, but claimed the substitution was defective and provided dates of availability in May, conditioning the deposition on receipt of a valid substitution. (Motion, p. 6:3-7; Parme Decl., ¶ 14, Ex. L.) Plaintiff has also failed to produce expert files and documents in advance of the noticed depositions as required under Code of Civil Procedure section 2034.415, and continue to refuse to cooperate or produce her experts. (Motion, p. 6:8-13.)

Defendant argues that Plaintiff's refusal to provide additional dates and cooperate with producing her experts for deposition is clear misuse of the discovery process and gamesmanship.

In opposition, Plaintiff argues that Plaintiff's experts have always been willing to appear for deposition at a mutually agreed-upon date and time, that Defendant's own change of counsel left Plaintiff in a period of uncertainty regarding the proper defense counsel with whom to continue substantive discussions concerning expert scheduling and deposition coordination, and Plaintiff reasonably paused further expert-related discussions until Defendant's representation was formally clarified through a properly served and filed substitution of attorney. (Opp., p. 2:4-5, 2:27-3:4.) Plaintiff also argues that she timely served objections to the notices of deposition on April 10, 2026, met and conferred reasonably and in good faith under the circumstances created by Defense counsel, and asserts that Defense counsel has been acting in bad faith, citing the

non-production of Defendant's expert witness Dr. Ehsan Saadat, M.D. (Opp., p. 3:5-15, 5:11-23.) Plaintiff requests sanctions against Defendant in the amount of \$1,750 for the reasonable attorney's fees and costs in opposing the motion. (Opp., p. 7:7-8.)

On reply, Defendant sets forth a number of facts which have transpired since the filing of the motion. The facts are as follows:

On April 27, 2026, Defendant advised Plaintiff that dates still had not been provided and that Defendant intended to seek relief. (Kaminsky Decl., ¶¶ 3-4, Ex. M.) In an effort to resolve the matter, Defendant accepted the conditionally identified dates provided by Plaintiff on April 21, 2026 and served amended notices of deposition on April 28, 2026. (Kaminsky Decl., ¶¶ 5-6, Ex. N, O.) On April 29, Plaintiff objected to the amended deposition notices on the grounds that the experts and counsel were unavailable and would not appear and that the notices were procedurally defective as they did not provide the statutorily required notice period. (Kaminsky Decl., ¶ 7, Ex. P, Q, R.) On April 29 and 30, Defendant expressed disagreement with the procedural and unavailability objections, and requested confirmation of appearance or alternative dates, and again on May 4th, to which Plaintiff responded that objections had already been served. (Kaminsky Decl., ¶¶ 8-11; Ex. S, T, U.) Defendant requested alternative dates again on May 6, May 8, May 18, and May 27, but no dates were provided and no response was given. (Kaminsky Decl., ¶¶ 12-19, Ex. V.) After Plaintiff changed handling attorneys, Defendant renewed its request on June 3 to no avail. (Kaminsky Decl., ¶¶ 20-22, Ex. X.) Defendant again requested dates on July 29, August 3, and August 4. (Kaminsky Decl., ¶¶ 24-28, Ex. Y, Z.) Plaintiff has failed to provide alternative dates in response to any of these requests. (Reply, p. 4:6-9.)

Since April 28, 2026, Defendant has requested deposition of availability for Nourian, Oheb, and Rosescu, which have continued throughout Defendant's filing of the substitution of attorney, the Court continuing trial to complete pending discovery, Plaintiff's own change in handling attorneys, Plaintiff's completion of the Court-ordered Independent Medical Examination (IME), and throughout the month of August 2026, but Plaintiff has still failed to produce the experts. (Reply, p. 2:3-10.) On August 10, 2026, Plaintiff's counsel requested that Defendant stipulate to another trial continuance and to withdraw the present motion and set depositions, but failed to provide availability for any of the experts. (Reply, p. 2:11-17; Kaminsky Decl., ¶¶ 30-32, Ex. AA.)

As a preliminary matter, the Court is displeased by the back and forth between counsel as to which party is acting in worse faith in producing their experts for deposition. The deposition of Dr. Ehsan Saadat, M.D. is not at issue and has no bearing on the determination of the instant motion to compel. The non-compliance of one party does not excuse the non-compliance of the other. Both parties are under equal, affirmative obligations to cooperate with civility, to comply with discovery deadlines, and coordinate in good faith. The Court therefore disregards any argument raised by Plaintiff that Defendant is obstructing discovery in a separate matter not presently before the Court. If Plaintiff has a motion bring, she should bring it.

As to Plaintiff's counsel's refusal to reschedule the three depositions with Parme, it is true that the general doctrine regarding the scope of an attorney's representation is "that the attorney of record has the exclusive right to appear in court for his client and to control the court proceedings, so that neither the party himself [citations], nor another attorney [citations], can be recognized by the court in the conduct or disposition of the case." (Wells Fargo & Co. v. City of San Francisco (1944) 25 Cal.2d 37, 42-43.) When an attorney of record is changed, written notice of the change and of the substitution of a new attorney must be given to the adverse party, and until then, he must recognize the former attorney. (Code Civ. Proc., § 285.)

However, this general doctrine is not without exception, and even if no formal substitution of attorney is served and filed, "[w]here the actual authority of the new or different attorney appears, courts regularly excuse the absence of record of a formal substitution and validate the attorney's acts, particularly where the adverse party has not been misled or otherwise prejudiced. (E.g., Crocker National Bank v. O'Donnell (1981) 115 Cal.App.3d 264, 268-269 [] [terming failure to file substitution a "technical objection"]; In re Marriage of Warner (1974) 38 Cal.App.3d 714, 719-720 []; Carrara v. Carrara (1953) 121 Cal.App.2d 59, 62 [] [irregularity in substitution does not oust jurisdiction].)" (Baker v. Boxx (1991) 226 Cal. App. 3d 1303, 1309.) Thus, even if Parme's change in firm affiliation constitutes a change in representation, Plaintiff was not per se entitled to disregard all existing obligations and ongoing proceedings based on a technicality where they had clear notice that Parme's representation of Defendant was ongoing amidst his transfer.

Here, Parme served as Defense counsel for Defendant from the inception of the matter. Parme is the attorney who signed off on Defendant's answer to the complaint on May 20, 2025. Parme is the attorney who signed off on all three notices of deposition. The substitution of attorney form, filed on April 21, 2026 following Defendant's signature the same date, lists the former legal representative as "Michael Parme" and the new legal representative as "Michael Parme."

Plaintiff knew of Parme's status as Defense counsel, his actual authority was clear, Plaintiff was in no way misled or prejudiced by his transfer to a new law firm, and Plaintiff's counsel was clearly aware of Parme's move to Kahana Feld, as on April 14, 2026, (1) Tyler Kaminsky, at attorney with Kahana Feld, emailed Plaintiff's counsel requesting an extension to respond to discovery requests as Kahana Feld was "waiting for the file to transfer from Haight," which Parme was copied on, (2) Alfonso Ortega, Plaintiff's counsel, responded stating "It looks like Mike Parme is at this firm now. He had this at Haight so the file should be transferred promptly", (3) Ortega stated to Parme that he would have to wait to confirm deposition dates until Parme was counsel of record, and (4) Parme responded that the substitution would be effectuated shortly, and that Plaintiff's counsel has been on notice and was aware that Parme intended to depose Plaintiff's experts. (See Parme Decl., Ex. H.)

Moreover, in their April communications with Parme and Kahana Feld, Plaintiff's counsel appears to take the position that Haight was still attorney of record, and thus, the depositions could only properly move forward with Haight. However, Plaintiff's counsel has not stated, nor provided any evidence, that they contacted, or attempted to contact, Haight to provide additional dates for the taking of the experts' depositions, that Plaintiff's counsel provided Haight with any of the documents requested in the deposition notice, that Plaintiff's counsel sent to or received from Haight any correspondence regarding this case during this transition which gave rise to confusion or uncertainty regarding Defendant's representation, or made any effort to confirm with Haight whether representation was being transferred to Kahana Feld with Parme remaining as lead counsel.

Rather, Plaintiff objected to the three notices of deposition, failed to provide any alternative dates, failed to meet and confer regarding additional dates for the taking of the experts' depositions with Haight, outright refused to do so with Parme, and provided dates for the depositions conditioned on receipt of an updated substitution of attorney signed by Haight, relying solely on a procedural technicality which does not reasonably appear to have imposed any belief on Plaintiff's counsel that Defendant was represented by Haight.

In any event, at this point, it has long been clear from the record and ongoing correspondence and discovery efforts between the parties that Parme and Kahana Feld are Defendant's counsel of record. Plaintiff has been engaging in ongoing, substantive correspondence regarding the case with Parme and Kahana Feld and cannot now reasonably plead confusion or ignorance as to representation. While the Court acknowledges Plaintiff's timely objections served on Haight and Kahana to the deposition notices sent, it also acknowledges Plaintiff's ongoing refusal in rescheduling these depositions, extending well beyond the transfer of Parme's law firm association in April 2026. Plaintiff has continuously failed to produce her experts for deposition or provide alternative dates for scheduling, and has continued to challenge the validity of Parme's representation of Defendant despite no clear indication that there is any reasonable basis on which to do so. While the circumstances surrounding the initial filing of the motion to compel on April 28th establish some prematurity in filing, as trial is set to commence in less than one month and Plaintiff has failed to produce her experts, the Court finds that granting this motion is warranted under these circumstances.

Therefore, Defendant's motion to compel is GRANTED with monetary sanctions in the amount of \$4,185.00 against Plaintiff and her attorney of record. Plaintiff shall produce her experts for deposition within 10 days of this Order.

Defendant shall pay all required expert witness fees for the depositions upon confirmation of the date and time of each. Plaintiff shall provide all documents and records as required no less than three days prior to the depositions where possible. If any deposition is set within three days, Plaintiff shall provide all non-privileged documents as required as soon as possible, but no later than 24 hours before the deposition.

Payment of sanctions shall be made to Defense counsel within 10 days of this Order, which may be extended upon agreement of the parties.

Plaintiff's request for sanctions is DENIED.

Defendant's alternative request to exclude expert opinion at trial is DENIED without prejudice. As this is a pending discovery matter, the Court will hear further motion as necessary. Should Plaintiff fail to produce her experts for deposition within 10 days of this Order, Defendant may file a subsequent motion for issue or evidentiary sanctions to exclude the expert's opinion testimony as appropriate.

V. Conclusion

Defendant Camacho Auto Sales, Inc.'s Motion to Compel the Depositions of Retained Experts Alen Nourian, M.D., Jonathan Oheb, M.D., and Philip Rosescu, is GRANTED with sanctions in the amount of \$4,185.00 against Plaintiff and Plaintiff's counsel of record.

Defendant's Motion in the Alternative To Exclude Their Expert Opinions is DENIED without prejudice.

Plaintiff Michele M. Caruso's request for sanctions is DENIED.